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Legislature advances bill to combat homelessness by making significant improvements to shelter programs

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Last week, the California State Legislature approved a measure authored by Assemblymember Jesse Gabriel to address the state's homelessness crisis that will make crucial, overdue changes to shelter and motel occupancy programs. If signed by Governor (Gavin) Newsom, Assembly Bill 1991, would prevent homeless individuals from being needlessly moved into new shelters every 30 days.

"Addressing California's homelessness crisis requires not only more resources, but also better strategy and coordination," said Assemblymember Gabriel. "This common-sense bill will help to cut through red tape and streamline bureaucracy so that our service providers can better serve homeless students and families."

Currently, thousands of people experiencing homelessness in California are participating in shelter programs, which allow them to reside temporarily in motels, hotels, and other sites. Many hotels and motels resort to shuffling people between rooms or removing people from their properties every four weeks to avoid creating a landlord-tenant relationship. This shuffling practice is disruptive to those participating in the programs — particularly families with young children enrolled in neighborhood schools — and needlessly consumes the resources of service providers who must constantly work to find new accommodations.

In other cases, motels and hotels do not participate in shelter programs out of concern that they will establish unwanted landlord-tenant relationships, thus limiting the availability of viable properties. Participants in these programs also often lack clear guidance, leading to potentially arbitrary removals that needlessly put individuals back on the street.

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AB 1991 makes it clear that motels and hotels can provide lodging to individuals enrolled in shelter programs for longer than 30 days without establishing a tenant-landlord relationship. Additionally, in cases of removals from motels and hotels, shelter programs would make reasonable efforts to provide an exit plan for participants that includes referrals to other available lodging accommodations and transportation assistance. Finally, the bill creates processes and protections for individuals participating in these programs to ensure they are not removed from shelter programs without due process.

"As a proud co-sponsor of AB 1991, LA Family Housing is deeply thankful for the leadership of Assemblymember Gabriel on this critical issue," said Stephanie Klasky-Gamer, President and Chief Executive Officer, LA Family Housing. "As one of LA County's largest homeless services providers that helps nearly 12,000 individuals and families transitioning out of homelessness each year, LAFH knows firsthand the negative impacts shuffling has on families, who are forced to relocate through no fault of their own. AB 1991 creates much needed protection for shelter program participants while ensuring clarity for both service providers and motel and hotel operators. We urge Governor Newsom to sign this much-needed legislation."

"AB 1991 will provide much needed clarification for shelter and Interim Housing programs operating in motels and hotels," said Kristina Dixon, Acting Co-Executive Director of the Los Angeles Homeless Services Authority. "Program participants will no longer be subject to 'shuffling', or be asked to move between rooms every 29-days. This bill is smart legislation and will protect participants from being prematurely exited from the program and more importantly, help homeless service providers focus on securing permanent housing for unhoused families."

The bill now moves to the governor's desk, where it must be acted on by Sept. 30.

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